Understanding Creative Commons Licensing

Empowering creators to share while protecting their work

by Siva Jasthi

Outline

Copyright

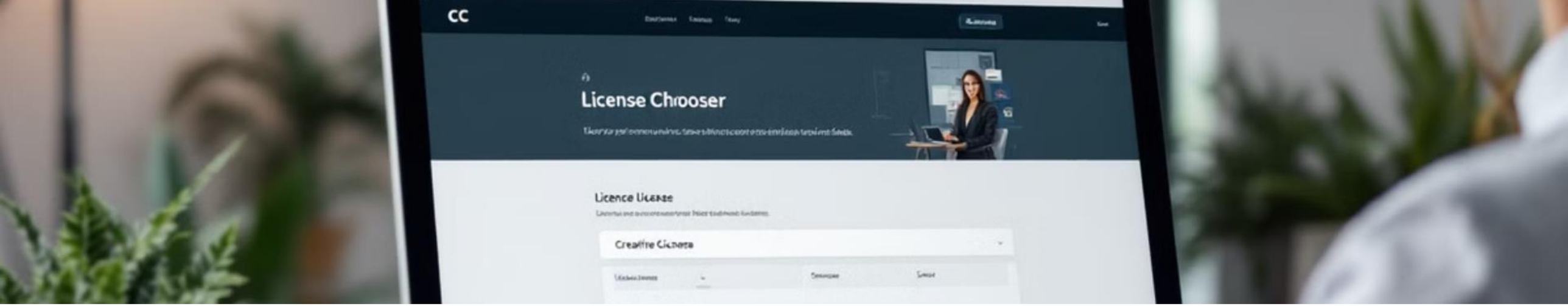
Copyleft

Open Source

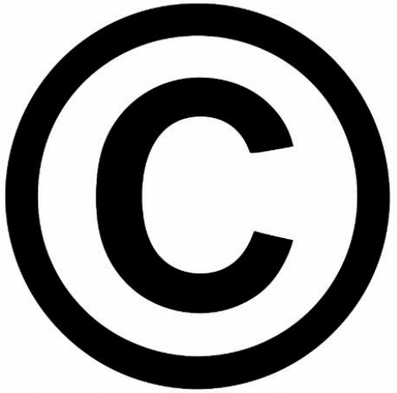
Software License types

Creative Commons

Siva.Jasthi@metrostate.edu



Copyright



Everything (images, text, snippets of code) you find on web is owned by someone.

Just because it is available there, it is not free to use.

Only some content is in public domain (eg: anything on .gov site).

Unless otherwise specified, you need to assume that it is owned by someone.

Copyright Fundamentals

Exclusive Rights

Copyright grants creators exclusive control over their original works.

Duration

Protection typically lasts for the creator's lifetime plus 70 years.

Automatic Protection

Works are protected immediately upon creation in fixed form.

Legal Recourse

Owners can sue for damages if rights are violated.

Siva.Jasthi@metrostate.edu

What Copyright Protects

Literary Works

Books, articles, poetry, blogs, and other written content receive protection.

Audiovisual Works

Movies, TV shows, video games, and YouTube videos are covered.

Software Code

Computer programs are protected as literary works.

Creative Expression

Music, photographs, paintings, and other artistic works.

What Copyright Doesn't Cover

Ideas

Copyright protects expression, not underlying concepts.

Facts

Historical events and scientific discoveries remain in public domain.

Recipes

Ingredient lists and basic instructions remain unprotected.

Formulas

Mathematical equations and algorithms aren't copyrightable.

Fair Use Doctrine

Educational Purpose

Using copyrighted works for teaching often qualifies as fair use.

Commentary/Criticism

Reviews and analysis typically allow copyrighted content inclusion.

News Reporting

Journalists can use copyrighted material to report current events.

Transformative Use

Creating something new with different purpose may qualify.

Introduction to Copyleft

Share-Alike Philosophy

Copyleft requires derivatives to use the same license.

Modification Freedom

Users can change and adapt the original work.

Distribution Rights

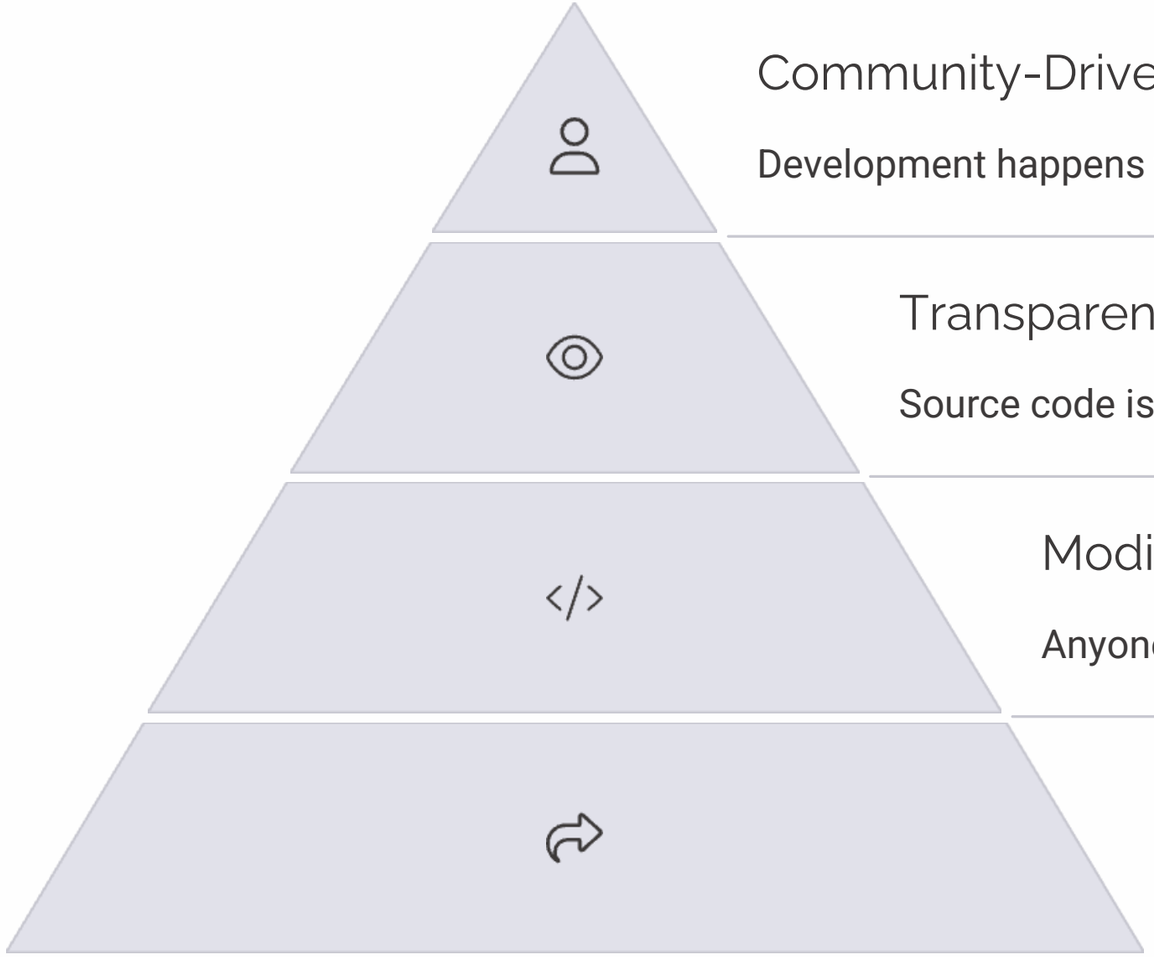
Anyone can share the work under the same terms.

Prevents Privatization

Works cannot be made exclusive by subsequent users.

Siva.Jasthi@metrostate.edu

Open Source Software Defined



Community-Driven

Development happens through collaboration.

Transparency

Source code is visible to everyone.

Modifiable

Anyone can change and improve the code.

Freely Distributable

Software can be shared without restriction.

Popular Open Source Software

These widely-used open source projects power much of our digital world, from operating systems to websites and mobile applications.

Open Source Business Models

Support Services

Companies offer paid assistance for free software.

Premium Features

Free core product with paid advanced functionality.

Hosted Solutions

Providing managed services built on open code.

Certification

Training and validating expertise on open platforms.

Siva.Jasthi@metrostate.edu

Software License Types

Proprietary Licenses

Restrict modification and redistribution. Examples: Microsoft Windows, Adobe Creative Suite.

Copyleft Licenses

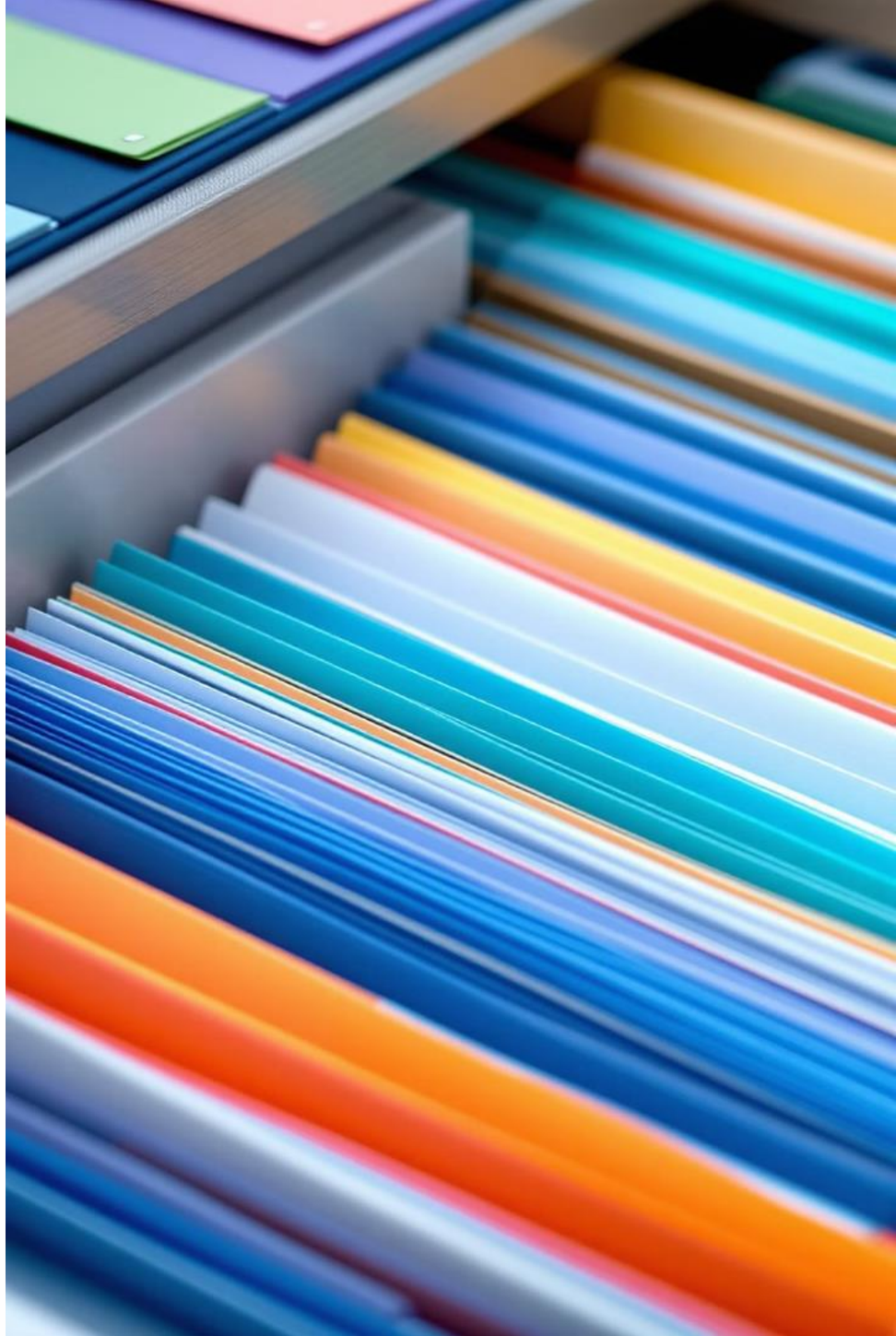
Permit modification but require sharing under same terms. Example: GNU GPL.

Permissive Licenses

Allow modification and use in proprietary software. Examples: MIT, Apache.

Public Domain

No restrictions; anyone can use for any purpose.



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Common Open Source Licenses

GNU General Public License (GPL)

The most famous copyleft license. Requires derivatives to maintain the same license.

Used by: Linux kernel, WordPress, GIMP

MIT License

Highly permissive license allowing commercial use and modification.

Used by: jQuery, Node.js, Rails

Apache License

Permissive license with patent rights provisions.

Used by: Android, Hadoop, TensorFlow

The Problem with Traditional Copyright

All Rights Reserved is too restrictive

Prevents sharing in digital world

Internet demands more flexibility

Content spreads globally in seconds

Legal barriers limit innovation

Permission-seeking slows creativity

Creative Commons: The Solution

Founded in 2001

Response to restrictive copyright laws

Middle ground approach

Between "all rights reserved" and public domain

Standardized licenses

Clear permissions without lawyer needed

Global community

Adopted by major platforms worldwide

https://creativecommons.org/about/cclicenses/

Creative Commons Overview

Flexible Licensing

Creators choose specific rights to grant users.

Creative Works

Designed for artistic, literary, and media content.

Global Recognition

Used and recognized in over 170 jurisdictions worldwide.

Standardized Terms

Clear language replacing complex legal jargon.

Benefits of Creative Commons

For Creators

- Retain copyright ownership
- Choose specific permissions
- Increase content visibility

For Users

- Legal clarity on usage
- Free access to materials
- Built-in attribution system

For Society

- Knowledge sharing culture
- Reduced legal friction
- Democratized creation

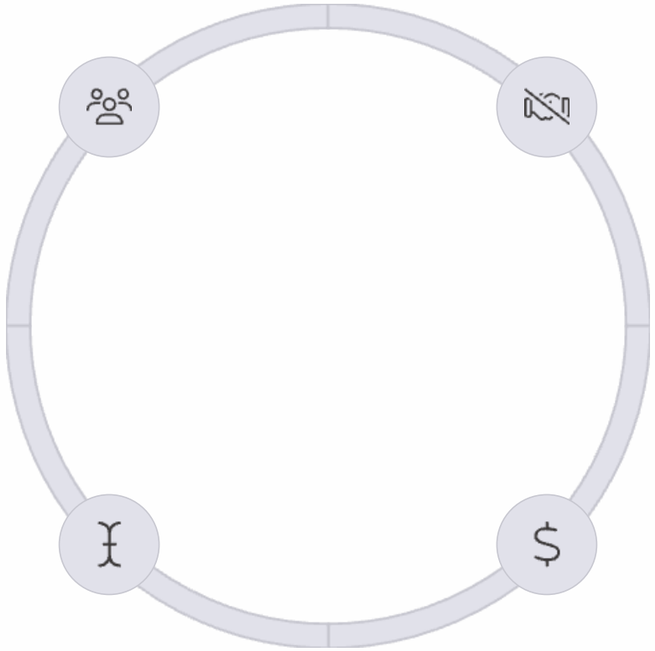
The 4 License Elements

Attribution (BY)

Credit original creator

ShareAlike (SA)

Share with same license



NoDerivatives (ND)

No modifications permitted

NonCommercial (NC)

No commercial use allowed

CC: 4 License Elements

Attribution (BY)

Credit must be given to the original creator.

No Derivatives (ND)

No modifications or adaptations are permitted.

Share-Alike (SA)

Derivatives must use the same license terms.

Non-Commercial (NC)

Commercial use of the work is prohibited.

The Six Main CC Licenses

CC BY

Most permissive: just give credit

CC BY-SA

Share using identical license terms

CC BY-ND

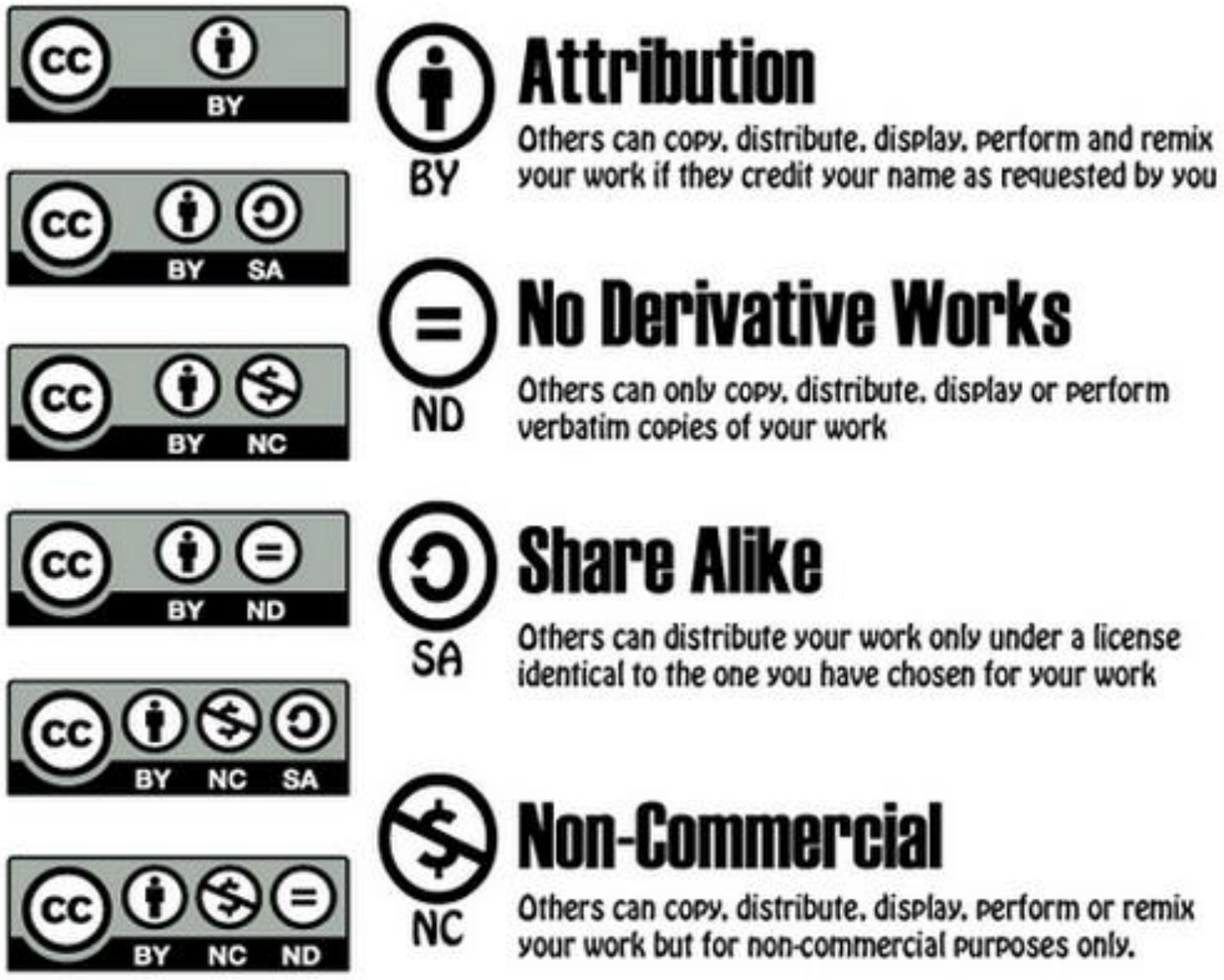
No changes allowed to original work

CC BY-NC

Non-commercial use only

CC BY-NC-SA/ND

Most restrictive combinations



CC Licenses in Education

Open Educational Resources

Free textbooks and course materials

Universities Adopt CC

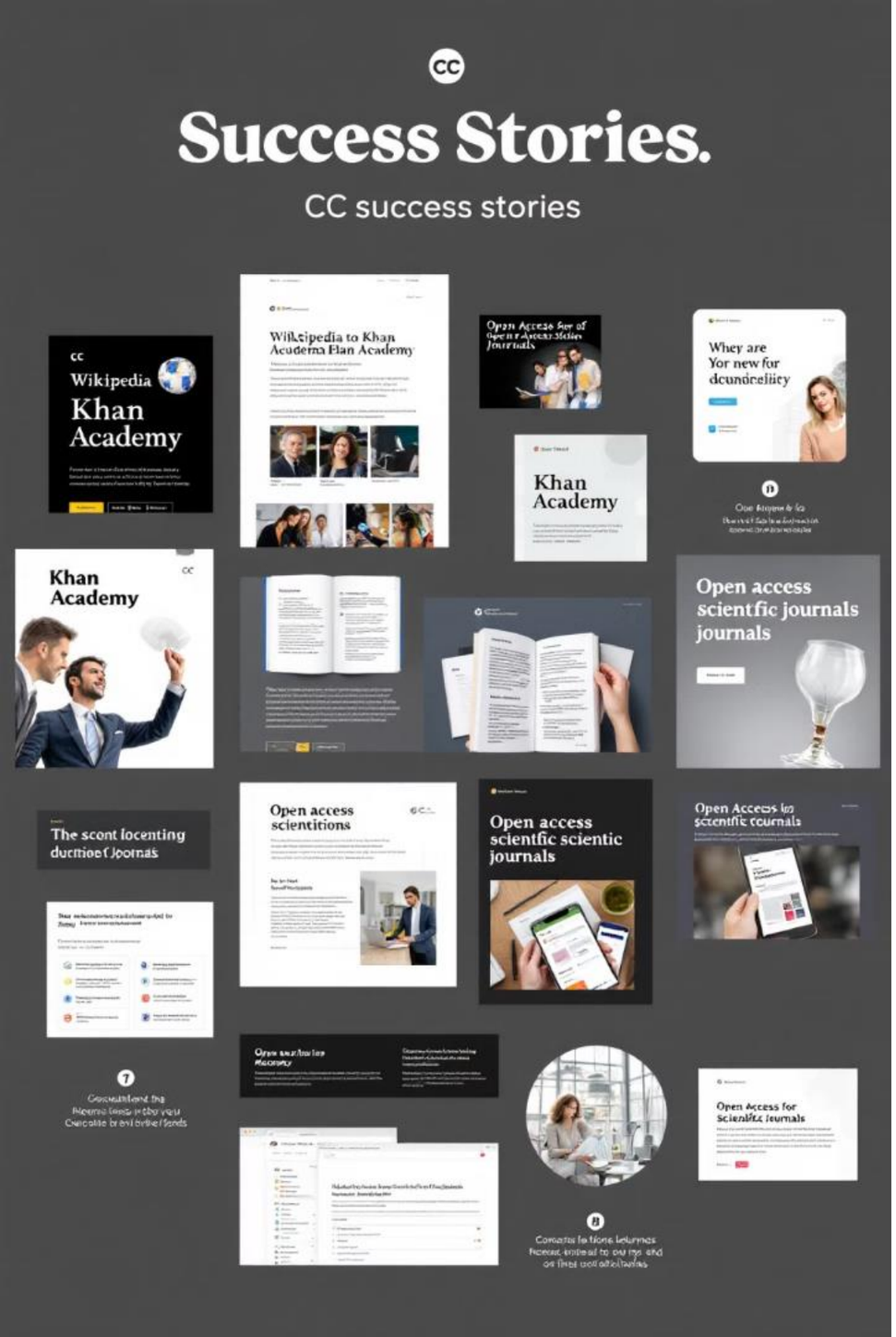
MIT OpenCourseWare pioneered sharing

Student Cost Savings

Billions saved on educational materials

Global Knowledge Equity

Learning resources reach underserved areas



CC Success Stories

Wikipedia

All content under CC BY-SA license

https://www.wikipedia.org/

Flickr

Over 500 million CC licensed photos

https://www.flickr.com/creativecommons/

Open Access Journals

Scientific knowledge freely available

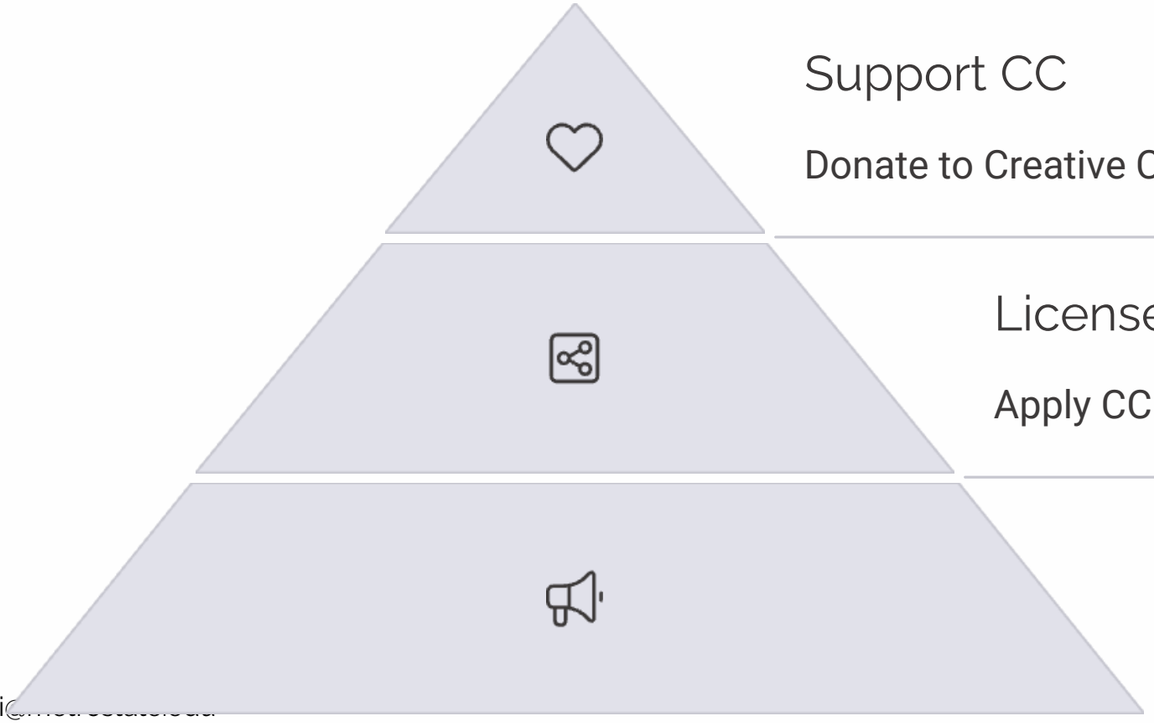
https://doaj.org/

Creative Commons Music

Growing alternative to traditional licensing

https://creativecommons.org/legalmusicforvideos/

Join the Creative Commons Movement



Support CC

Donate to Creative Commons organization

License Your Work

Apply CC licenses to your creations

Spread Awareness

Educate others about open licensing